

Opinion of the Court

perhaps *more* likely to impact the national security of the United States. In short, the Court of Appeals offered no plausible basis to permit a Fourth Amendment *Bivens* claim against Agent Egbert to proceed.

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Second, Congress has provided alternative remedies for aggrieved parties in Boule’s position that independently foreclose a *Bivens* action here. In *Hernández*, we declined to authorize a *Bivens* remedy, in part, because the Executive Branch already had investigated alleged misconduct by the defendant Border Patrol agent. See 589 U.S., at — — —, ——. In *Malesko*, we explained that *Bivens* relief was unavailable because federal prisoners could, among other options, file grievances through an “Administrative Remedy Program.” 534 U.S., at 74. Both kinds of remedies are available here. The U.S. Border Patrol is statutorily obligated to “control, direc[t], and supervis[e] . . . all employees.” 8 U.S.C. § 1103(a)(2). And, by regulation, Border Patrol must investigate “[a]lleged violations of the standards for enforcement activities” and accept grievances from “[a]ny persons wishing to lodge a complaint.” 8 CFR §§ 287.10(a)–(b) (2021). As noted, Boule took advantage of this grievance procedure, prompting a year-long internal investigation into Agent Egbert’s conduct. See *supra*, at 489–490.

Boule nonetheless contends that Border Patrol’s grievance process is inadequate because he is not entitled to participate and has no right to judicial review of an adverse determination.³ But we have never held that a *Bivens* alternative

³Boule also argues that Agent Egbert forfeited any argument about Border Patrol’s grievance process because he did not raise the issue in the Court of Appeals. We disagree. Because recognizing a *Bivens* cause of action “is an extraordinary act that places great stress on the separation of powers,” *Nestlé USA, Inc. v. Doe*, 593 U.S. —, — (2021) (plurality opinion), we have “a concomitant responsibility” to evaluate any grounds that counsel against *Bivens* relief, *Oliva v. Nivar*, 973 F.3d 438, 443, n. 2 (CA5 2020); see also *Elhady v. Unidentified CBP Agents*, 18 F.4th